

Master Services Agreement

MASTER SERVICES AGREEMENT

This Master Services Agreement ("MSA") is made effective as of the date of last signature by and between CloudStack Solutions Inc. ("Provider") and Acme Enterprises Inc. ("Customer").

1. SCOPE OF SERVICES

Provider will deliver the cloud infrastructure services described in the applicable Statement of Work ("SOW"). Each SOW, when executed by both parties, shall be governed by this MSA.

2. FEES AND PAYMENT

Customer shall pay the fees set forth in each SOW within 30 days of invoice date. Provider may adjust fees annually based on the Consumer Price Index, with 60 days' written notice. Late payments shall accrue interest at 1.5% per month. Provider may suspend services if fees remain unpaid for 30 days after the due date, but will provide Customer 10 business days' prior written notice before any suspension.

3. TERM AND TERMINATION

This MSA shall remain in effect for 24 months from the Effective Date and shall renew for successive 12-month terms unless either party gives 90 days' written notice of non-renewal. Either party may terminate this MSA (i) for material breach if the breach remains uncured for 30 days after written notice, or (ii) immediately upon the other party's insolvency. Customer may terminate any SOW for convenience upon 90 days' written notice, subject to payment of fees through the notice period.

4. LIMITATION OF LIABILITY

Neither party shall be liable for any indirect, incidental, or consequential damages. Each party's total liability arising out of this MSA shall not exceed the total fees paid or payable by Customer under the applicable SOW during the 12 months preceding the claim. These limitations do not apply to (i) either party's indemnification obligations, (ii) Customer's payment obligations, (iii) breach of confidentiality, or (iv) gross negligence or willful misconduct.

5. INTELLECTUAL PROPERTY

Each party retains ownership of its pre-existing intellectual property. Provider grants Customer a non-exclusive, perpetual, worldwide license to use any deliverables created specifically for Customer under each SOW. Customer grants Provider a non-exclusive license to use Customer's materials solely for providing the Services.

6. CONFIDENTIALITY

Each party agrees to protect the other's confidential information using reasonable care, for a period of 3 years from disclosure. Confidential information may be disclosed only to those employees and contractors who need to know and are bound by confidentiality obligations at least as protective as those herein. This section does not apply to information that: (a) is or becomes publicly available through no fault of the receiving party; (b) was rightfully in the receiving party's possession prior to disclosure; or (c) is independently developed by

the receiving party.

7. DATA PROTECTION

Provider shall maintain commercially reasonable administrative, physical, and technical security measures. Provider will process Customer data in accordance with the Data Processing Agreement attached as Exhibit A. Provider will delete Customer data within 90 days of termination upon Customer's written request.

8. GOVERNING LAW

This MSA shall be governed by the laws of the State of New York. Any dispute shall be resolved in the state or federal courts located in New York County, New York. The prevailing party shall be entitled to recover its reasonable legal costs.